

1 ENGROSSED HOUSE
2 BILL NO. 3267

By: George of the House

and

Frix of the Senate

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7 An Act relating to crimes and punishments; amending
8 Section 13, Chapter 366, O.S.L. 2024, as amended by
9 Section 6, Chapter 187, O.S.L. 2025 (21 O.S. Supp.
10 2025, Section 20M), which relates to Class C2 felony
11 offenses; adding criminal act to list of Class C2
12 felony offenses; amending 21 O.S. 2021, Section 1438,
as amended by Section 1, Chapter 340, O.S.L. 2024 (21
O.S. Supp. 2025, Section 1438), which relates to the
crime of breaking and entering; making certain acts
unlawful; providing penalties; and providing an
effective date.

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16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY Section 13, Chapter 366, O.S.L.
18 2024, as amended by Section 6, Chapter 187, O.S.L. 2025 (21 O.S.
19 Supp. 2025, Section 20M), is amended to read as follows:

20 Section 20M. A. Upon the effective date of this act, Class C2
21 shall include the following criminal offenses:

22 1. Theft of anhydrous equipment, as provided for in subsection
23 B of Section 11-10 of Title 2 of the Oklahoma Statutes;

1 2. Branding, misbranding, marking, or mismarking any domestic
2 animal with intent to defraud, as provided for in Section 268 of
3 Title 4 of the Oklahoma Statutes;

4 3. Injuring, destroying, or attempting to injure or destroy any
5 pipeline transportation system, as provided for in subsection C of
6 Section 6.1 of Title 17 of the Oklahoma Statutes;

7 4. Embezzlement by a county treasurer or other officer, as
8 provided for in Section 641 of Title 19 of the Oklahoma Statutes;

9 5. Giving or offering any bribe to an executive officer, as
10 provided for in Section 265 of ~~Title 21 of the Oklahoma Statutes~~
11 this title;

12 6. Receiving or agreeing to receive a bribe by an executive
13 officer or person elected or appointed to an executive office, as
14 provided for in Section 266 of ~~Title 21 of the Oklahoma Statutes~~
15 this title;

16 7. Entry into a restricted area of a building or grounds using
17 or carrying a deadly or dangerous weapon or firearm or engaging in
18 acts of violence that result in great bodily injury, as provided for
19 in paragraph 1 of subsection B of Section 282 of ~~Title 21 of the~~
20 ~~Oklahoma Statutes~~ this title;

21 8. Forcefully or fraudulently preventing the Legislature from
22 meeting or organizing, as provided for in Section 301 of ~~Title 21 of~~
23 ~~the Oklahoma Statutes~~ this title;

1 9. Forcefully or fraudulently compelling or attempting to
2 compel the Legislature to adjourn or disperse, as provided for in
3 Section 303 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 10. Compelling or attempting to compel either house of the
5 Legislature to pass, amend, or reject any bill or resolution, grant
6 or refuse any petition, or to perform or omit to perform any other
7 official act, as provided for in Section 305 of ~~Title 21 of the~~
8 ~~Oklahoma Statutes~~ this title;

9 11. Offering to give a bribe to any member of the Legislature
10 in order to influence the member in giving or withholding a vote, as
11 provided for in Section 308 of ~~Title 21 of the Oklahoma Statutes~~
12 this title;

13 12. Asking, receiving, or agreeing to receive any bribe by a
14 member of the Legislature, as provided for in Section 309 of ~~Title~~
15 ~~21 of the Oklahoma Statutes~~ this title;

16 13. Entering a fort, magazine, arsenal, armory, arsenal yard,
17 or encampment and seizing or taking away arms, ammunition, military
18 stores, or supplies belonging to the state, as provided for in
19 Section 350 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 14. Carrying, causing to be carried, or publicly displaying any
21 red flag or other emblem or banner indicating disloyalty to the
22 Government of the United States, as provided for in Section 374 of
23 ~~Title 21 of the Oklahoma Statutes~~ this title;

1 15. Bribery by a fiduciary, as provided for in subsection A of
2 Section 380 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 16. Bribery of a fiduciary, as provided for in subsection B of
4 Section 380 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5 17. Commercial bribery of an insured depository institution or
6 credit union, as provided in Section 380.1 of ~~Title 21 of the~~
7 ~~Oklahoma Statutes~~ this title;

8 18. Accepting or requesting a bribe by public officers or
9 employees of this state, as provided for in Section 382 of ~~Title 21~~
10 ~~of the Oklahoma Statutes~~ this title;

11 19. Offering or giving a bribe to any judicial officer, as
12 provided for in Section 383 of ~~Title 21 of the Oklahoma Statutes~~
13 this title;

14 20. Attempting to influence a juror, as provided for in Section
15 388 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 21. Conspiracy to commit a felony, as provided for in
17 subsection C of Section 421 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;

19 22. Conspiring to commit any act against the peace of the state
20 by two or more persons outside of the state, as provided for in
21 Section 422 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22 23. Conspiring to commit any act against the state by two or
23 more persons, as provided for in Section 424 of ~~Title 21 of the~~
24 ~~Oklahoma Statutes~~ this title;

1 24. Attempting to avoid a roadblock by failing to stop, passing
2 by or through such roadblock without permission, as provided for in
3 Section 540B of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 25. Fraudulently producing an infant in order to intercept the
5 inheritance or distribution of any personal estate or real estate,
6 as provided for in Section 578 of ~~Title 21 of the Oklahoma Statutes~~
7 this title;

8 26. Maiming by inflicting upon one's self any disabling injury,
9 as provided for in Section 752 of ~~Title 21 of the Oklahoma Statutes~~
10 this title;

11 27. Financial exploitation of an elderly or disabled adult with
12 funds, assets, or property valued at One Hundred Thousand Dollars
13 (\$100,000.00) or less, as provided for in paragraph 2 of subsection
14 B of Section 843.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15 28. Conducting gambling games, as provided for in Section 941
16 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 29. Using a house, room, or place to conduct gambling games, as
18 provided for in Section 946 of ~~Title 21 of the Oklahoma Statutes~~
19 this title;

20 30. Engaging or participating in gambling games by a public
21 officer, as provided for in Section 948 of ~~Title 21 of the Oklahoma~~
22 ~~Statutes~~ this title;

23 31. Commercial gambling, as provided for in Section 982 of
24 ~~Title 21 of the Oklahoma Statutes~~ this title;

1 32. Letting premises for the purpose of betting on races or
2 receiving, registering, recording, or forwarding any money or thing
3 of value to a racetrack for betting purposes, as provided for in
4 paragraphs 2 through 6 of subsection A of Section 991 of ~~Title 21 of~~
5 ~~the Oklahoma Statutes~~ this title;

6 33. Using the terms "prize" or "gift" in a manner that is
7 untrue or misleading, as provided for in Section 996.3 of ~~Title 21~~
8 ~~of the Oklahoma Statutes~~ this title;

9 34. Advocating criminal syndicalism, sabotage, or the
10 necessity, propriety, or expediency of doing any act of physical
11 violence or unlawful act as a means of accomplishing any industrial
12 or political ends, change, or revolution, as provided for in
13 subsection A of Section 1327 of ~~Title 21 of the Oklahoma Statutes~~
14 this title;

15 35. Arson in the fourth degree by attempting to set fire to or
16 burn any building or property, as provided for in subsection A of
17 Section 1404 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 36. Delivering to another any merchandise for which any bill of
19 lading, receipt, or voucher has been issued and the value of the
20 property is Fifteen Thousand Dollars (\$15,000.00) or more, as
21 provided for in paragraph 4 of Section 1416 of ~~Title 21 of the~~
22 ~~Oklahoma Statutes~~ this title;

23 37. Burglary in the second degree by breaking and entering into
24 any commercial building or by breaking and entering into a coin-

1 operated or vending machine, as provided for in subsection A of
2 Section 1435 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 38. Breaking and entering into an occupied dwelling without the
4 intention to commit any crime, as provided for in subsection C of
5 Section 1438 of this title;

6 39. Embezzlement of property valued at Fifteen Thousand Dollars
7 (\$15,000.00) or more, as provided for in paragraph 4 of subsection B
8 of Section 1451 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 ~~39.~~ 40. Embezzlement by a county or state officer, as provided
10 for in subsection C of Section 1451 of ~~Title 21 of the Oklahoma~~
11 ~~Statutes~~ this title;

12 ~~40.~~ 41. False personation of another, as provided for in
13 Section 1531 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 ~~41.~~ 42. Receiving money or property intended for another with a
15 value of Fifteen Thousand Dollars (\$15,000.00) or more, as provided
16 for in paragraph 4 of Section 1532 of ~~Title 21 of the Oklahoma~~
17 ~~Statutes~~ this title;

18 ~~42.~~ 43. Use of a motor vehicle or motor-driven cycle for the
19 purpose of falsely impersonating a law enforcement officer which
20 causes another person to be injured, defrauded, harassed, vexed, or
21 annoyed, as provided for in paragraph 2 of subsection F of Section
22 1533 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23 ~~43.~~ 44. Obtaining, attempting to obtain, or presenting to a
24 financial institution personal, financial, or other information of

1 another person, as provided for in Section 1533.2 of ~~Title 21 of the~~
2 ~~Oklahoma Statutes~~ this title;

3 ~~44.~~ 45. Obtaining property by trick, deception, or by means of
4 a false or bogus check and the property value is Fifteen Thousand
5 Dollars (\$15,000.00) or more, as provided for in paragraph 3 of
6 subsection A of Section 1541.2 of ~~Title 21 of the Oklahoma Statutes~~
7 this title;

8 ~~45.~~ 46. Making, drawing, uttering, or delivering two or more
9 false or bogus checks and the value is Fifteen Thousand Dollars
10 (\$15,000.00) or more, as provided for in paragraph 3 of subsection A
11 of Section 1541.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 ~~46.~~ 47. Selling, exchanging, or delivering any forged or
13 counterfeited promissory note, check, bill, draft, or other evidence
14 of debt knowing the same is forged or counterfeited and the value of
15 the instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
16 provided for in paragraph 4 of subsection A of Section 1577 of ~~Title~~
17 ~~21 of the Oklahoma Statutes~~ this title;

18 ~~47.~~ 48. Possession of any forged, altered, or counterfeited
19 negotiable note, bill, draft, or other evidence of debt and the
20 value of the instrument is Fifteen Thousand Dollars (\$15,000.00) or
21 more, as provided for in paragraph 4 of subsection A of Section 1578
22 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23 ~~48.~~ 49. Possession of any forged or counterfeited instrument
24 with intent to injure or defraud and the value of the instrument is

1 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
2 paragraph 4 of subsection A of Section 1579 of ~~Title 21 of the~~
3 ~~Oklahoma Statutes~~ this title;

4 ~~49.~~ 50. Uttering or publishing as true any forged, altered, or
5 counterfeited instrument or counterfeit coins and the value of the
6 instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as
7 provided for in paragraph 4 of subsection A of Section 1592 of ~~Title~~
8 ~~21 of the Oklahoma Statutes~~ this title;

9 ~~50.~~ 51. Exhibiting false, forged, or altered books, papers,
10 vouchers, security, or other instruments of evidence to any public
11 officer or board with intent to deceive, as provided for in Section
12 1632 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 ~~51.~~ 52. Destroying, altering, mutilating, or falsifying any
14 books, papers, writing, or securities belonging to a corporation or
15 association with intent to defraud, as provided for in Section 1635
16 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 ~~52.~~ 53. Larceny of lost property and the value of the property
18 is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
19 paragraph 4 of Section 1702 of ~~Title 21 of the Oklahoma Statutes~~
20 this title;

21 ~~53.~~ 54. Grand larceny and the value of the property is Fifteen
22 Thousand Dollars (\$15,000.00) or more, as provided for in paragraph
23 4 of subsection A of Section 1705 of ~~Title 21 of the Oklahoma~~
24 ~~Statutes~~ this title;

1 ~~54.~~ 55. Grand larceny in any dwelling house or vessel, as
2 provided for in Section 1707 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~55.~~ 56. Larceny of any evidence of debt or other written
5 instrument, as provided for in Section 1709 of ~~Title 21 of the~~
6 ~~Oklahoma Statutes~~ this title;

7 ~~56.~~ 57. Buying or receiving any property that has been stolen,
8 embezzled, or obtained by false pretense or robbery and has a value
9 of Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
10 paragraph 3 of subsection A of Section 1713 of ~~Title 21 of the~~
11 ~~Oklahoma Statutes~~ this title;

12 ~~57.~~ 58. Buying or receiving any construction equipment or farm
13 equipment that has been stolen, embezzled, or obtained by false
14 pretense or robbery, as provided for in Section 1713.1 of ~~Title 21~~
15 ~~of the Oklahoma Statutes~~ this title;

16 ~~58.~~ 59. Bringing into this state the stolen property of another
17 obtained from another state or country, as provided for in Section
18 1715 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19 ~~59.~~ 60. Larceny of livestock or implement of husbandry, as
20 provided for in subsection A of Section 1716 of ~~Title 21 of the~~
21 ~~Oklahoma Statutes~~ this title;

22 ~~60.~~ 61. Larceny of a dog, as provided for in Section 1718 of
23 ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~61.~~ 62. Grand larceny of exotic livestock, as provided for in
2 Section 1719.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 ~~62.~~ 63. Larceny of an aircraft, automobile, construction
4 equipment, or farm equipment, valued at Fifty Thousand Dollars
5 (\$50,000.00) or more, as provided for in Section 1720 of ~~Title 21 of~~
6 ~~the Oklahoma Statutes~~ this title;

7 ~~63.~~ 64. Tapping or drilling into a pipeline, as provided for in
8 Section 1721 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 ~~64.~~ 65. Taking any crude oil or gasoline from any pipe,
10 pipeline, tank, tank car, or other receptacle or container and the
11 value of such product is One Thousand Dollars (\$1,000.00) or more,
12 as provided for in paragraph 2 of Section 1722 of ~~Title 21 of the~~
13 ~~Oklahoma Statutes~~ this title;

14 ~~65.~~ 66. Larceny of merchandise from a retailer or wholesaler
15 and the value of the goods is Fifteen Thousand Dollars (\$15,000.00)
16 or more, as provided for in paragraph 5 of subsection A of Section
17 1731 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 ~~66.~~ 67. Larceny of trade secrets that is valued at Fifteen
19 Thousand Dollars (\$15,000.00) or more, as provided for in Section
20 1732 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 ~~67.~~ 68. Procuring, soliciting, selling, or receiving by
22 fraudulent, deceptive, or false means two to ten telephone records
23 without authorization, as provided for in paragraph 2 of subsection
24 B of Section 1742.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~68.~~ 69. Masking, altering, or removing any locomotive or
2 railway car lights or signals, as provided for in Section 1778 of
3 ~~Title 21 of the Oklahoma Statutes~~ this title;

4 ~~69.~~ 70. Mutilating, tearing, defacing, obliterating, or
5 destroying any written instrument, value of Fifteen Thousand Dollars
6 (\$15,000.00) or more, as provided for in Section 1779 of ~~Title 21 of~~
7 ~~the Oklahoma Statutes~~ this title;

8 ~~70.~~ 71. Violations of the Oklahoma Computer Crimes Act, as
9 provided for in paragraphs 1, 2, 3, 6, 7, 9, or 10 of subsection A
10 of Section 1953 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 ~~71.~~ 72. Contracting the sale of rights arising from a criminal
12 act without providing for the forfeiture of the proceeds, as
13 provided for in subsection A of Section 17 of Title 22 of the
14 Oklahoma Statutes;

15 ~~72.~~ 73. Violating any of the provisions of the Oklahoma Clean
16 Air Act knowing that the violation places others in danger of death
17 or serious bodily injury, as provided for in subsection B of Section
18 2-5-116 of Title 27A of the Oklahoma Statutes;

19 ~~73.~~ 74. Violating any of the provisions of the Oklahoma
20 Pollutant Discharge Elimination System Act knowing that the
21 violation places others in imminent danger of death or serious
22 bodily injury, as provided for in subparagraph a of paragraph 3 of
23 subsection G of Section 2-6-206 of Title 27A of the Oklahoma
24 Statutes;

1 ~~74.~~ 75. Soliciting or accepting any bribe or money by a game
2 warden in connection with the performance of his or her duties as a
3 game warden, as provided for in subsection E of Section 3-201 of
4 Title 29 of the Oklahoma Statutes;

5 ~~75.~~ 76. Taking or enticing away an incapacitated or partially
6 incapacitated person or person for whom a guardian has been
7 appointed without consent of the guardian, as provided for in
8 Section 4-904 of Title 30 of the Oklahoma Statutes;

9 ~~76.~~ 77. Violating any of the provisions of the Viatical
10 Settlements Act of 2008 if the value of the viatical settlement
11 contract is more than Two Thousand Five Hundred Dollars (\$2,500.00)
12 but not more than Thirty-five Thousand Dollars (\$35,000.00), as
13 provided for in paragraph 2 of subsection F of Section 4055.14 of
14 Title 36 of the Oklahoma Statutes;

15 ~~77.~~ 78. Embezzlement of certain funds held in trust, value of
16 Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in
17 ~~paragraph (2)~~ subsection B of Section 153 of Title 42 of the
18 Oklahoma Statutes;

19 ~~78.~~ 79. Providing any false statement of a material fact in an
20 application for a certificate of title, as provided for in Section
21 4-108 of Title 47 of the Oklahoma Statutes;

22 ~~79.~~ 80. Altering or forging any certificate of title issued by
23 the Oklahoma Tax Commission, as provided for in Section 4-109 of
24 Title 47 of the Oklahoma Statutes;

1 ~~80.~~ 81. Perjury by making any false affidavit, as provided for
2 in Section 6-302 of Title 47 of the Oklahoma Statutes;

3 ~~81.~~ 82. Creating, manufacturing, issuing, or selling security
4 verification forms, as provided for in subsection B of Section 7-612
5 of Title 47 of the Oklahoma Statutes;

6 ~~82.~~ 83. Committing a subsequent violation of driving under the
7 influence of alcohol or other intoxicating substance within ten (10)
8 years of being convicted of driving under the influence of alcohol
9 or other intoxicating substance, causing a personal injury accident
10 while driving under the influence of alcohol or other intoxicating
11 substance, or driving under the influence of alcohol or other
12 intoxicating substance while transporting a child, as provided for
13 in paragraph 2 of subsection C of Section 11-902 of Title 47 of the
14 Oklahoma Statutes;

15 ~~83.~~ 84. Operating a vehicle without a valid driver license for
16 the class of vehicle being operated and causing an accident
17 resulting in great bodily injury to another person, as provided for
18 in subsection B of Section 11-905 of Title 47 of the Oklahoma
19 Statutes;

20 ~~84.~~ 85. Operating a crusher without a proper license and
21 receiving, obtaining, or possessing any vehicle or property known to
22 be stolen, as provided for in paragraph 2 of subsection B of Section
23 592.9 of Title 47 of the Oklahoma Statutes;

1 ~~85.~~ 86. Selling a vehicle or other property to a crusher using
2 false or altered identification or making a false declaration of
3 ownership or lien status, as provided for in paragraph 3 of
4 subsection B of Section 592.9 of Title 47 of the Oklahoma Statutes;

5 ~~86.~~ 87. Owning, operating, or conducting a chop shop,
6 transporting any motor vehicle or parts to or from a chop shop, or
7 selling, transferring, purchasing, or receiving any motor vehicle or
8 parts to or from a chop shop, as provided for in subsection A of
9 Section 1503 of Title 47 of the Oklahoma Statutes;

10 ~~87.~~ 88. Altering, counterfeiting, defacing, destroying,
11 disguising, falsifying, forging, obliterating, or knowingly removing
12 a vehicle identification number, as provided for in subsection B of
13 Section 1503 of Title 47 of the Oklahoma Statutes;

14 ~~88.~~ 89. Perjury by a public officer or employee who states as
15 true any material matter knowing it to be false, as provided for in
16 Section 36.5 of Title 51 of the Oklahoma Statutes;

17 ~~89.~~ 90. Advocating by teaching, justifying, or becoming a
18 member of or affiliated with the Communist Party or with any other
19 party or organization that advocates for the revolution, sedition,
20 treason, or overthrow of the government of the United States or the
21 State of Oklahoma by a public officer or employee, as provided for
22 in Section 36.6 of Title 51 of the Oklahoma Statutes;

23 ~~90.~~ 91. Perjury by verifying under oath any report, map, or
24 drawing required to be filed with the Corporation Commission knowing

1 that such material is false, as provided for in Section 109 of Title
2 52 of the Oklahoma Statutes;

3 ~~91.~~ 92. Asking, receiving, or agreeing to receive any gift or
4 gratuity by any member of the Corporation Commission, as provided
5 for in Section 118 of Title 52 of the Oklahoma Statutes;

6 ~~92.~~ 93. Burglary in the first degree by a bail enforcer by
7 breaking into and entering the dwelling house of any defendant or
8 third party for purposes of recovery or attempted recovery of a
9 defendant, as provided for in subsection A of Section 1350.6 of
10 Title 59 of the Oklahoma Statutes;

11 ~~93.~~ 94. Distributing, dispensing, transporting, or possessing a
12 controlled dangerous substance or soliciting a person less than
13 eighteen (18) years of age to cultivate, distribute, or dispense a
14 controlled dangerous substance, as provided for in paragraph 1 of
15 subsection A of Section 2-401 of Title 63 of the Oklahoma Statutes;

16 ~~94.~~ 95. Creating, distributing, transporting, or possessing a
17 counterfeit controlled dangerous substance, as provided for in
18 paragraph 2 of subsection A of Section 2-401 of Title 63 of the
19 Oklahoma Statutes;

20 ~~95.~~ 96. Manufacturing or distributing a controlled substance or
21 synthetic controlled substance, as provided for in paragraph 1 of
22 subsection C of Section 2-401 of Title 63 of the Oklahoma Statutes;

1 ~~96.~~ 97. Larceny, burglary, or theft of a controlled dangerous
2 substance, as provided for in subsection A of Section 2-403 of Title
3 63 of the Oklahoma Statutes;

4 ~~97.~~ 98. Obtaining or attempting to obtain any controlled
5 dangerous substance by fraud, deceit, misrepresentation, or
6 subterfuge, as provided for in paragraph 1 of subsection A of
7 Section 2-407 of Title 63 of the Oklahoma Statutes;

8 ~~98.~~ 99. Obtaining or attempting to obtain any controlled
9 dangerous substance by forgery of, alteration of, or changing any
10 information on a prescription or any written order, as provided for
11 in paragraph 2 of subsection A of Section 2-407 of Title 63 of the
12 Oklahoma Statutes;

13 ~~99.~~ 100. Obtaining or attempting to obtain any controlled
14 dangerous substance by the concealment of a material fact, as
15 provided for in paragraph 3 of subsection A of Section 2-407 of
16 Title 63 of the Oklahoma Statutes;

17 ~~100.~~ 101. Obtaining or attempting to obtain any controlled
18 dangerous substance by the use of a false name or false address, as
19 provided for in paragraph 4 of subsection A of Section 2-407 of
20 Title 63 of the Oklahoma Statutes;

21 ~~101.~~ 102. Obtaining or attempting to obtain any controlled
22 dangerous substance by failing to disclose the receipt or
23 prescription of a controlled dangerous substance of the same or
24 similar therapeutic use from another practitioner, as provided for

1 in paragraph 5 of subsection A of Section 2-407 of Title 63 of the
2 Oklahoma Statutes;

3 ~~102.~~ 103. Manufacturing, creating, delivering, or possessing an
4 original prescription form or counterfeit prescription form, as
5 provided for in subsection B of Section 2-407 of Title 63 of the
6 Oklahoma Statutes;

7 ~~103.~~ 104. Receiving or acquiring proceeds known to be derived
8 from any violation of the Uniform Controlled Dangerous Substances
9 Act, as provided for in subsection A of Section 2-503.1 of Title 63
10 of the Oklahoma Statutes;

11 ~~104.~~ 105. Knowingly or intentionally giving, selling,
12 transferring, trading, investing, concealing, transporting, or
13 maintaining an interest in anything of value which is intended to be
14 used for committing a violation of the Uniform Controlled Dangerous
15 Substances Act, as provided for in subsection B of Section 2-503.1
16 of Title 63 of the Oklahoma Statutes;

17 ~~105.~~ 106. Directing, planning, organizing, initiating,
18 financing, managing, supervising, or facilitating the transportation
19 or transfer of proceeds known to be derived from a violation of the
20 Uniform Controlled Dangerous Substances Act, as provided for in
21 subsection C of Section 2-503.1 of Title 63 of the Oklahoma
22 Statutes;

23 ~~106.~~ 107. Conducting a financial transaction involving proceeds
24 derived from a violation of the Uniform Controlled Dangerous

1 Substances Act for the purpose of concealing or disguising the
2 nature, location, source, ownership, or control of the proceeds
3 known to be derived from a violation of the Uniform Controlled
4 Dangerous Substances Act, as provided for in subsection D of Section
5 2-503.1 of Title 63 of the Oklahoma Statutes;

6 ~~107.~~ 108. Encouraging, facilitating, or allowing access to any
7 money transmitter equipment for unlawful purposes, as provided for
8 in subsection B of Section 2-503.1d of Title 63 of the Oklahoma
9 Statutes;

10 ~~108.~~ 109. Using a money services business or electronic funds
11 transfer network to facilitate any violation of the Uniform
12 Controlled Dangerous Substances Act, as provided for in Section 2-
13 503.1e of Title 63 of the Oklahoma Statutes;

14 ~~109.~~ 110. Structuring, assisting, or attempting to structure
15 any unlawful transaction with one or more financial or nonfinancial
16 trades or businesses, as provided for in Section 2-503.1g of Title
17 63 of the Oklahoma Statutes;

18 ~~110.~~ 111. Altering, counterfeiting, defacing, destroying,
19 disguising, falsifying, forging, obliterating, or removing a hull
20 identification number of a vessel or motor, as provided for in
21 subsection B of Section 4253 of Title 63 of the Oklahoma Statutes;

22 ~~111.~~ 112. Commit or attempt to commit certain violations of the
23 Vessel and Motor Chop Shop, Stolen and Altered Property Act, as
24

1 provided for in subsection D of Section 4253 of Title 63 of the
2 Oklahoma Statutes;

3 ~~112.~~ 113. Giving a false or bogus check in payment or
4 remittance of taxes, fees, penalties, or interest levied pursuant to
5 any state tax laws and the value of the false or bogus check is Five
6 Hundred Dollars (\$500.00) or more, as provided for in Section 218.1
7 of Title 68 of the Oklahoma Statutes;

8 ~~113.~~ 114. Perjury by providing false answers to any questions
9 from the Oklahoma Tax Commission or making or presenting any false
10 affidavit to be filed with the Oklahoma Tax Commission, as provided
11 for in Section 244 of Title 68 of the Oklahoma Statutes;

12 ~~114.~~ 115. Perjury by verifying by oath, affirmation, or
13 declaration, any false report or false return that is to be filed
14 with the Oklahoma Tax Commission, as provided for in Section 246 of
15 Title 68 of the Oklahoma Statutes;

16 ~~115.~~ 116. Making or manufacturing any tax stamp or falsely or
17 fraudulently forging, counterfeiting, reproducing, or possessing any
18 tax stamp, as provided for in subsection ~~(a)~~ A of Section 317 of
19 Title 68 of the Oklahoma Statutes;

20 ~~116.~~ 117. Offering or selling unregistered securities, as
21 provided for in Section 1-301 of Title 71 of the Oklahoma Statutes;

22 ~~117.~~ 118. Issuing investment certificates when insolvent by an
23 investment certificate issuer, as provided for in paragraph 1 of
24 subsection K of Section 1-308 of Title 71 of the Oklahoma Statutes;

1 ~~118.~~ 119. Transacting business as a broker-dealer without being
2 registered as a broker-dealer, as provided for in subsection A of
3 Section 1-401 of Title 71 of the Oklahoma Statutes;

4 ~~119.~~ 120. Employing or associating with an individual for
5 security transaction purposes when the registration of the
6 individual is suspended or revoked or the individual is barred from
7 employment or association with a broker-dealer, as provided for in
8 subsection C of Section 1-401 of Title 71 of the Oklahoma Statutes;

9 ~~120.~~ 121. Transacting business as an agent without being
10 registered as an agent, as provided for in subsection A of Section
11 1-402 of Title 71 of the Oklahoma Statutes;

12 ~~121.~~ 122. Employing or associating with an agent who transacts
13 business on behalf of broker-dealers when the agent is not
14 registered, as provided for in subsection D of Section 1-402 of
15 Title 71 of the Oklahoma Statutes;

16 ~~122.~~ 123. Conducting business on behalf of a broker-dealer when
17 the registration of the agent is suspended or revoked or the
18 individual is barred from employment or association with a broker-
19 dealer, as provided for in subsection F of Section 1-402 of Title 71
20 of the Oklahoma Statutes;

21 ~~123.~~ 124. Transacting business as an investment adviser without
22 being registered as an investment adviser, as provided for in
23 subsection A of Section 1-403 of Title 71 of the Oklahoma Statutes;
24

1 ~~124.~~ 125. Employing or associating with an individual to engage
2 in providing investment advice when the registration of the
3 individual is suspended or revoked or the individual is barred from
4 employment or association with an investment adviser, as provided
5 for in subsection C of Section 1-403 of Title 71 of the Oklahoma
6 Statutes;

7 ~~125.~~ 126. Employing or associating with an individual required
8 to be registered as an investment adviser representative who is not
9 registered as an investment adviser representative, as provided for
10 in subsection D of Section 1-403 of Title 71 of the Oklahoma
11 Statutes;

12 ~~126.~~ 127. Transacting business as an investment adviser
13 representative without being registered as an investment adviser
14 representative, as provided for in subsection A of Section 1-404 of
15 Title 71 of the Oklahoma Statutes;

16 ~~127.~~ 128. Conducting business on behalf of an investment
17 adviser or federal-covered investment adviser when the registration
18 of the investment adviser representative is suspended or revoked or
19 the individual is barred from employment or association with an
20 investment adviser or federal-covered investment adviser, as
21 provided for in subsection E of Section 1-404 of Title 71 of the
22 Oklahoma Statutes;

23 ~~128.~~ 129. Employing a device, scheme, or artifice to defraud
24 another when offering, selling, or purchasing a security, as

1 provided for in paragraph 1 of Section 1-501 of Title 71 of the
2 Oklahoma Statutes;

3 ~~129.~~ 130. Making an untrue statement of a material fact or
4 omitting a material fact when offering, selling, or purchasing a
5 security, as provided for in paragraph 2 of Section 1-501 of Title
6 71 of the Oklahoma Statutes;

7 ~~130.~~ 131. Engaging in an act, practice, or course of business
8 that operates as a fraud or deceit upon another person when
9 offering, selling, or purchasing a security, as provided for in
10 paragraph 3 of Section 1-501 of Title 71 of the Oklahoma Statutes;

11 ~~131.~~ 132. Employing a device, scheme, or artifice to defraud
12 another when advising others for compensation as to the value of
13 securities, as provided for in paragraph 1 of subsection A of
14 Section 1-502 of Title 71 of the Oklahoma Statutes;

15 ~~132.~~ 133. Making an untrue statement of a material fact or
16 omitting a material fact when advising others for compensation as to
17 the value of securities, as provided for in paragraph 2 of
18 subsection A of Section 1-502 of Title 71 of the Oklahoma Statutes;

19 ~~133.~~ 134. Engaging in an act, practice, or course of business
20 that operates as a fraud or deceit upon another person when advising
21 others for compensation as to the value of securities, as provided
22 for in paragraph 3 of subsection A of Section 1-502 of Title 71 of
23 the Oklahoma Statutes;

1 ~~134.~~ 135. Making false or misleading statements in a record, as
2 provided for in Section 1-505 of Title 71 of the Oklahoma Statutes;

3 ~~135.~~ 136. Making or causing to be made to a purchaser,
4 customer, client, or prospective customer or client, an inconsistent
5 representation, as provided for in Section 1-506 of Title 71 of the
6 Oklahoma Statutes;

7 ~~136.~~ 137. Willfully violating certain provisions of the
8 Oklahoma Uniform Securities Act of 2004, as provided for in
9 subsection A of Section 1-508 of Title 71 of the Oklahoma Statutes;

10 ~~137.~~ 138. Offering or selling any business opportunity without
11 being registered under the Oklahoma Business Opportunity Sales Act,
12 as provided for in Section 806 of Title 71 of the Oklahoma Statutes;

13 ~~138.~~ 139. Offering or selling any business opportunity without
14 a written disclosure being filed, as provided for in subsection A of
15 Section 808 of Title 71 of the Oklahoma Statutes;

16 ~~139.~~ 140. Offering or selling any business opportunity without
17 a business opportunity contract or agreement, as provided for in
18 subsection A of Section 809 of Title 71 of the Oklahoma Statutes;

19 ~~140.~~ 141. Making or using any specific representations from the
20 Oklahoma Business Opportunity Sales Act without having a minimum net
21 worth of Fifty Thousand Dollars (\$50,000.00), as provided for in
22 Section 811 of Title 71 of the Oklahoma Statutes;

23 ~~141.~~ 142. Using information filed with or obtained by the
24 Administrator that is not public for the personal benefit of the

1 Administrator or any officers or employees of the Administrator, as
2 provided for in subsection B of Section 812 of Title 71 of the
3 Oklahoma Statutes;

4 ~~142.~~ 143. Employing any device, scheme, or artifice to defraud
5 in connection with offering or selling any business opportunity, as
6 provided for in paragraph 1 of Section 819 of Title 71 of the
7 Oklahoma Statutes;

8 ~~143.~~ 144. Making any untrue statement of a material fact or
9 omitting a material fact in connection with offering or selling any
10 business opportunity, as provided for in paragraph 2 of Section 819
11 of Title 71 of the Oklahoma Statutes;

12 ~~144.~~ 145. Engaging in any act, practice, or course of business
13 which operates as a fraud or deceit in connection with offering or
14 selling any business opportunity, as provided for in paragraph 3 of
15 Section 819 of Title 71 of the Oklahoma Statutes;

16 ~~145.~~ 146. Making or causing to be made any false or misleading
17 statements or omitting to state a material fact necessary in any
18 document filed with the Administrator or in any proceeding pursuant
19 to the Oklahoma Business Opportunity Sales Act, as provided for in
20 Section 820 of Title 71 of the Oklahoma Statutes;

21 ~~146.~~ 147. Filing any application for registration that is
22 false, incomplete, or misleading, as provided for in Section 821 of
23 Title 71 of the Oklahoma Statutes;

1 ~~147.~~ 148. Publishing, circulating, or using any advertising
2 that contains untrue statements of material facts or omits to state
3 material facts necessary, as provided for in Section 822 of Title 71
4 of the Oklahoma Statutes;

5 ~~148.~~ 149. Taking or receiving any rebate, percentage of
6 contract, money, or any other thing of value by an officer of the
7 Office of Management and Enterprise Services from any person, firm,
8 or corporation, as provided for in Section 71 of Title 74 of the
9 Oklahoma Statutes;

10 ~~149.~~ 150. Monopolizing, attempting to monopolize, or conspiring
11 to monopolize any part of trade or commerce, as provided for in
12 subsection B of Section 203 of Title 79 of the Oklahoma Statutes;

13 ~~150.~~ 151. Discrimination in price between different purchasers
14 of commodities by any person engaged in commerce, as provided for in
15 Section 204 of Title 79 of the Oklahoma Statutes;

16 ~~151.~~ 152. Violation of the Oklahoma Antitrust Reform Act, as
17 provided for in Section 206 of Title 79 of the Oklahoma Statutes;

18 ~~152.~~ 153. Having any interest, directly or indirectly, in any
19 contract for the purchase of property or construction of work by or
20 for the Grand River Dam Authority by a director, officer, agent, or
21 employee, as provided for in Section 867 of Title 82 of the Oklahoma
22 Statutes; and
23
24

1 ~~153.~~ 154. Using explosive agent to kill, injure, or intimidate
2 or to damage property, as provided for in subsection B of Section
3 124.8 of Title 63 of the Oklahoma Statutes.

4 B. Any person convicted of a Class C2 criminal offense set
5 forth in this section shall be punished by imprisonment in the
6 custody of the Department of Corrections for a term of not more than
7 seven (7) years and shall serve at least twenty percent (20%) of the
8 sentence imposed before release from custody including release to
9 electronic monitoring pursuant to Section 510.9 of Title 57 of the
10 Oklahoma Statutes.

11 C. 1. Every person who, having been previously convicted of
12 one or two Class C or Class D criminal offenses, commits a Class C2
13 criminal offense shall, upon conviction, be punished by imprisonment
14 in the custody of the Department of Corrections for a term of not
15 less than two (2) years nor more than ten (10) years and shall serve
16 at least twenty percent (20%) of the sentence imposed before release
17 from custody including release to electronic monitoring pursuant to
18 Section 510.9 of Title 57 of the Oklahoma Statutes.

19 2. Every person who, having been previously convicted of three
20 Class C or Class D criminal offenses, or one or more Class Y, Class
21 A, or Class B criminal offenses, commits a Class C2 criminal offense
22 shall, upon conviction, be punished by imprisonment in the custody
23 of the Department of Corrections for a term of not less than two (2)
24 years nor more than twelve (12) years and shall serve at least forty

1 percent (40%) of the sentence imposed before release from custody
2 including release to electronic monitoring pursuant to Section 510.9
3 of Title 57 of the Oklahoma Statutes.

4 D. Unless specifically exempted pursuant to subsection E of
5 this section, Section 51.1 of Title 21 of the Oklahoma Statutes
6 shall not apply to Class C2 criminal offenses.

7 E. 1. The criminal offenses listed in paragraphs 1, 2, ~~52,~~ 53,
8 54, 55, ~~63~~ 56, ~~65~~ 64, ~~67~~ 66, 68, 69, ~~76,~~ and 77, and 78 of
9 subsection A of this section shall be exempt from the penalty
10 provisions provided for in subsections B and C of this section.

11 Persons convicted of the criminal offenses provided for in
12 paragraphs 1, 2, ~~52,~~ 53, 54, 55, ~~63~~ 56, ~~65~~ 64, ~~67~~ 66, 68, 69, ~~76,~~
13 and 77, and 78 of subsection A of this section shall be punished in
14 accordance with the corresponding penalties provided for in the
15 Oklahoma Statutes including Section 51.1 of Title 21 of the Oklahoma
16 Statutes.

17 2. The criminal offense listed in paragraph ~~64~~ 65 of subsection
18 A of this section shall be exempt from the penalty provision
19 provided for in subsection B of this section. Persons convicted of
20 the criminal offense provided for in paragraph ~~64~~ 65 of subsection A
21 of this section shall be punished in accordance with the
22 corresponding penalties as provided for in the Oklahoma Statutes
23 including Section 51.1 of Title 21 of the Oklahoma Statutes. The
24 provisions of subsection C of this section still applies to the

1 criminal offense listed in paragraph ~~64~~ 65 of subsection A of this
2 section.

3 F. All Class C2 criminal offenses shall be punishable by the
4 corresponding fines as provided for in the Oklahoma Statutes.

5 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1438, as
6 amended by Section 1, Chapter 340, O.S.L. 2024 (21 O.S. Supp. 2025,
7 Section 1438), is amended to read as follows:

8 Section 1438. A. Every person who, under circumstances not
9 amounting to any burglary, enters any building or part of any
10 building, booth, tent, warehouse, railroad car, vessel, or other
11 structure or erection with intent to commit any felony, larceny, or
12 malicious mischief, is guilty of a misdemeanor.

13 B. Every person who, without the intention to commit any crime
14 therein, shall willfully and intentionally break and enter into any
15 building, trailer, vessel or other premises used as a dwelling
16 without the permission of the owner or occupant thereof, except in
17 the cases and manner allowed by law, shall be guilty of a
18 misdemeanor.

19 C. Every person who breaks into and enters the dwelling house
20 of another in which there is, at the time, some human being, without
21 the intention to commit any crime therein shall, upon conviction, be
22 guilty of breaking and entering into an occupied dwelling, a Class
23 C2 felony offense punishable by imprisonment as provided for in
24 subsections B through F of Section 20M of this title.

1 D. Every person who, with the intent to commit a crime, enters
2 an area of a commercial business that is:

3 1. Commonly reserved for personnel of the commercial business
4 where money or other property is kept; or

5 2. Clearly marked with a sign or signs that indicates to the
6 public that entry is forbidden,

7 shall, upon conviction, be guilty of a misdemeanor punishable by

8 imprisonment in the county jail for a term of not more than one (1)

9 year, or a fine of not more than Five Hundred Dollars (\$500.00), or

10 by both such fine and imprisonment. Any second or subsequent

11 conviction under the provisions of this subsection shall be a felony

12 punishable by imprisonment in the custody of the Department of

13 Corrections for a term of not more than two (2) years, or by a fine

14 of not more than One Thousand Dollars (\$1,000.00), or by both such

15 fine and imprisonment.

16 SECTION 3. This act shall become effective November 1, 2026.

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1 Passed the House of Representatives the 23rd day of March, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate